

Vijay Kumar Kesarwani v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 27 November 2019 · WRIT - C No. 2357 of 2008 · **Writ dismissed for want of prosecution; interim order discharged.**

HEADNOTE

Writ-C 2357 of 2008, repeatedly passed over on counsel's illness, was called in the revised list; none appeared for the petitioner. The High Court dismissed the petition for want of prosecution and discharged any interim order. No electricity supply or billing issue was decided.

FACTUAL SUMMARY

Vijay Kumar Kesarwani filed Writ-C No. 2357 of 2008 in the Allahabad High Court against the State of U.P. and others. The petition was passed over on 2 May 2011, 25 November 2011, and 16 December 2011 because counsel for the petitioner, Ved Prakash Mishra, was ill. On 27 November 2019 the matter was called in the revised list before Anjani Kumar Mishra J. None appeared for the petitioner. Counsel for respondent nos. 2 and 3 was present.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

Called in the revised list with none appearing for the petitioner, the writ petition is dismissed for want of prosecution. Interim order, if any, stands discharged. The electricity dispute is not decided. ¶ 1

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance

Writ-C 2357 of 2008, repeatedly passed over on counsel's illness, was called in the revised list; none appeared for the petitioner. The High Court dismissed the petition for want of prosecution and discharged any interim order. No electricity supply or billing issue was decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE WRIT AND ANY ELECTRICITY SUPPLY OR BILLING DISPUTE

Dismissed for want of prosecution without hearing or decision on the merits. ¶ 1